

22TRCV01505 22TRCV01505

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-07-07

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Case Number: 22TRCV01505 Hearing Date: July 7, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

HUGO CASAMAYOR

;

Plaintiff,

vs.

LOS ANGELES WORLD AIRPORTS

, et al.;

Defendants.

Case

No.:

22TRCV01505

Hearing

Date:

July
7, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

personal

representative/successor in interest maritza morena andrade's motion to substitute
in for deceased plaintiff HUGO CASAMAYOR and leave to file a supplemental
complaint

MOVING PARTY: Personal

Representative/Successor in Interest, Maritza Morena

RESPONDING PARTY: No opposition.

(1) Personal Representative/Successor in
Interest Maritza Morena Andrade's Motion to Substitute in for Deceased
Plaintiff Hugo Casamayor and Leave to File a Supplemental Complaint is GRANTED pursuant
to Code of Civil Procedure sections 377.31
and 377.32.

The Court considers the moving
papers filed on April 21, 2026. To date,
no opposition brief has been filed.

BACKGROUND

Factual Background

On December 15, 2022, plaintiff
and decedent Hugo Casamayor ("Plaintiff") filed the Complaint against defendants
Los Angeles World Airports and DOES 1 through 25. The Complaint includes two causes of action for
(1) General Negligence and (2) Premise Liability.

On July 19, 2023, Plaintiff
filed an amendment to the complaint, naming defendant Qantas Airways Limited as
DOE 1.

On June 30, 2024, Plaintiff
passed away unexpectedly.

LEGAL STANDARD

“On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent’s personal representative or, if none, by the decedent’s successor in interest.” (Code Civ. Proc., § 377.31.) “For the purposes of this chapter, ‘decedent’s successor in interest’ means the beneficiary of the decedent’s estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action.” (Code Civ. Proc., § 377.11.)

Pursuant to Code of Civil Procedure section 377.32, subdivision (a), “[t]he person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent’s successor in interest under this article, shall execute and file an affidavit or a declaration under penalty of perjury under the laws of this state stating all of the following:

- (1) The decedent’s name.
- (2) The date and place of the decedent’s death.
- (3) ‘No proceeding is now pending in California for administration of the decedent’s estate.’
- (4) If the decedent’s estate was administered, a copy of the final order showing the distribution of the decedent’s cause of action to the successor in interest.
- (5) Either of the following, as appropriate, with facts in support thereof:

(A) 'The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding.'

(B) 'The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding.'

(6) 'No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding.'

(7) 'The affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct.' "

Furthermore, "[w]here more than one person executes the affidavit or declaration under this section, the statements required by subdivision (a) shall be modified as appropriate to reflect that fact." (Code Civ. Proc., § 377.32, subd. (b).) "A certified copy of the decedent's death certificate shall be attached to the affidavit or declaration." (Code Civ. Proc., § 377.32, subd. (c).)

DISCUSSION

Maritza Morena Andrade requests

"an order allowing this action to be continued by her, as personal representative and/or successor in interest in the place of [Plaintiff], and granting leave to file a supplemental complaint to allege the moving party in place of [Plaintiff] as his personal representative and/or successor in interest." (Motion, p. 2:2-5.) Andrade, who is Plaintiff's widow and a designated successor, fulfills all statutory criteria required for this substitution to be granted. (Motion, pp. 3:9-12, 4:1-7; Declaration of Maritza Morena Andrade ("Andrade Decl."), ¶¶ 2, 4, 6-7; Supplemental Declaration of Maritza Morena Andrade ("Suppl. Andrade Decl."), Exhs. 1, 3-4.)

Andrade informs the Court that

Plaintiff passed away on June 30, 2024, at 2324 Valley Dr., Las Vegas, Nevada, 89014. (Andrade Decl., ¶ 2.) Andrade has provided the corresponding death

certificate. (Suppl. Andrade Decl., Exh.

2.) Furthermore, Andrade affirms that

there are no ongoing proceedings in California or Nevada concerning the administration of Plaintiff's estate, and that no other individual possesses a superior right to initiate this action or to be substituted for Plaintiff in the current litigation. (Andrade Decl., ¶¶

3, 5.)

Accordingly, the Court GRANTS
the motion.

ORDERS

1) Personal

Representative/Successor in Interest Maritza Morena Andrade's Motion to Substitute in for Deceased Plaintiff Hugo Casamayor and Leave to File a Supplemental Complaint is GRANTED.

2) Andrade

is ordered to provide notice of this Court's ruling.

IT IS SO ORDERED.

DATED: July 6, 2026

Tamara

Hall

Judge

of the Superior Court